

April 11, 2012



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13034
(FOURTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See Individual Authorization Letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 1.4 explosives (cap type small arms primers) in non-DOT specification packagings in company owned and operated vehicles between manufacturing facilities without labels or marking. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subparts D (Marking) and E (labeling) in that the primers need not be marked or labeled; § 173.56(b) in that the primers not do need to be approved; and § 173.62(c) Table in that the primers are not required to be packaged according to Packing Instruction 133, as provided herein.
5. BASIS: This special permit is based on the application of Federal Cartridge Company dated April 2, 2012 submitted in accordance with § 107.107.

April 11, 20126. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Primers, cap type	1.4S	UN0044	II
Primers, cap type	1.4B	UN0378	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is as shown on CCI/Speer Operations drawings on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA) and as follows:

(1) Inner Packaging - Paperboard trays (15" x 12"). The tray has a minimum thickness of 0.065 inch with a paperboard spacer pad on top. Each tray may not contain more than five hundred (500) cap type primers uniformly spaced apart.

(2) Outer Packaging - Non-DOT specification aluminum transfer box (15.38" x 12.5" x 10.12") with removable sidewalls and a heavy aluminum closure plate with a locking cam mechanism to prevent movement during transport. The transfer box has a minimum thickness of 0.12 inch. Each outer packaging may not contain more than thirty (30) inner packagings stacked horizontally with a foam pads not less than ½ inch in thickness above and below the stack and two foam plastic pads between the fifteenth and sixteenth layers of the stack.

b. OPERATIONAL CONTROLS -

(1) If the cap-type primers are transported within eighteen (18) hours of manufacture, they may be classed Division 1.4S unless they meet the 1.4B criteria in paragraph 7.b.(2). Otherwise, they shall be classed as Division 1.4B for transport under this special permit.

(2) If the cap type primers contain not more than 45 milligrams of lead-primer composition per device or not more than 33 milligrams of non-lead primer composition per device, they may be transported as Division 1.4S. Otherwise, they shall be classed as Division 1.4B for transport under this special permit.

(3) Transportation in commerce under this special permit is only authorized between ATK-Ammunition Accessories Inc. manufacturing facilities not more than ten miles in distance from each other by public highway.

(4) All packages shipped under this special permit must be transported in company-owned or leased motor vehicles operated by company employees.

8. SPECIAL PROVISIONS:

a. The packages shipped under this special permit are exempted from the marking and labeling requirements of 49 CFR Part 172. Placarding of the vehicle is required. Additionally, each motor vehicle used to transport the primers must be plainly and durably marked "DOT-SP 13034" on two opposing sides.

b. A current copy of this special permit must be maintained at each manufacturing facility where the package is offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SCW/sln